From:	Brian C
To:	Ed Barberini
Subject:	Re: ALPR program — aligning audits and disclosures with existing policy
Date:	Thursday, May 7, 2026 12:41:32 AM
Attachments:	image015.png image016.png image017.png image018.png image019.png image020.png image021.png

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Chief Barberini,

I have withdrawn W012462-040226, the Flock email search.

In last night's message I asked the Department to deprioritize that request and address my substantive PRAs first. The Department's response was to close W012297-030826 into it — a request that asked for internal memos and policy documents, not emails from Flock — and to extend two additional requests into the same email-search framing.

The withdrawal removes 211,872 documents from the Department's queue. I may re-file with a narrower scope if the substantive requests are not resolved.

My remaining requests are narrowly scoped to specific elements of city policy and state law. So far, the Department has been unable to produce the specific compliance records these requests seek. The 34-day search for a report City Council asked for in 2020 is one example — no related report has appeared in Council minutes from that period, and none has been produced here.

With the email corpus gone, I expect the remaining work to move faster. Most of what is still open is a yes-or-no question backed by a small set of documents. That should not take months.

Brian

P.S. When I filed W012462, I had not anticipated that Flock sends approximately 35,000 emails per year to the Department. That volume is itself notable, and I may pursue it separately with a more targeted request.

On 2026-05-05 16:29, Ed Barberini wrote:

> Good afternoon, Mr. Cervenka,
>
> Thank you for your email. I would be glad to meet and discuss this with you.
>
> Juliana Santiago manages my calendar, and I've included her here to help coordinate a date and time that works.
>
> I look forward to speaking with you.
>
> Ed
>
> Ed Barberini
> Chief of Police

City of San Mateo Police Department
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650-522-7600 | ebarberini@cityofsanmateo.org

From: Brian C <brian@zerobelow.org>
Sent: Tuesday, May 5, 2026 10:27 AM
To: Ed Barberini <ebarberini@cityofsanmateo.org>
Cc: Adam Loraine <aloraine@cityofsanmateo.org>; Nicole Fernandez <nfernandez@cityofsanmateo.org>; Lisa Diaz Nash <ldiaznash@cityofsanmateo.org>; Danielle Cwirko-Godycki <dcwirkogodycki@cityofsanmateo.org>; Rob Newsom <rnewsom@cityofsanmateo.org>; City Mgr <citymgr@cityofsanmateo.org>
Subject: ALPR program — aligning audits and disclosures with existing policy

Dear Chief,

Thank you for the substantial time your records team — Kelly O'Keefe and now Captain Maravillas — has spent responding to my Public Records Act requests over the past three months. The work has been real, and I want to acknowledge it. I should also be candid that substantial work remains: open requests are on rolling production, and additional requests are likely as further gaps surface.

Most of this work would not be necessary if the underlying records already existed. The PRA process is currently doing the work the internal audit framework was supposed to do. SOP 205.1's posting requirement, Policy 462.8's external-agency approval files, and SOP 205.5.1's quarterly operator audits — performed and documented in real time — would moot whole categories of the requests the department is now spending substantial time on. The current volume reflects more than a decade of deferred audits, documentation, and postings surfacing through public records requests all at once. I'd like to use this letter to identify where that loop closes — not by asking for any new policy or law, but by asking for consistent application of what the department has already committed to and what state law already requires.

Representations and practice. For more than a decade, across multiple ALPR platforms, the department's presentations to Council have described its program in terms of specific protective measures. At the September 2020 study session on police accountability, SMPD represented that "SMPD conducts regular audits to ensure access to the ALPR Databases are within policy." When Council approved the August 2023 Flock master services agreement, the staff report represented that the program uses "strictest industry standards with respect to how data is accessed and by whom" and shares with "NCRIC and allied County law enforcement agencies." Neither representation has been corrected on the record, and none of the stated measures has been substantially

implemented.

The records the department has since produced establish multiple gaps between law, policy, and practice:

- **Audits.** Policy 462.6(c), renumbered to 463.6(c) in January 2023, requires audits "on a regular basis, as described in SOP 205." No formal audit records existed before December 2025; the audits performed since conform to neither state law nor department policy.
- **External-agency approval.** Policy 463.8(b) (Dec 2025) requires that external-agency access requests be "reviewed by the ALPR Committee Captain or the authorized designee" before being fulfilled. An equivalent documented-review requirement has been on the books continuously since the original Policy 462 in 2012. Agencies are added through the Flock platform without documented review or retained records — a process that, in February 2026, placed at least one agency on the list inconsistent with § 1798.90.55(b), identified only after a resident raised the issue.
- **Sharing scope.** The August 2023 staff report described sharing with "NCRIC and allied County law enforcement agencies." The Flock transparency portal currently lists 283 organizations, spanning the state from Yuba County to San Diego and including ten District Attorney offices (none in San Mateo County), eleven campus and education police departments (most located outside San Mateo County), and — until February 2026 — at least one private university that does not qualify as a public agency under § 1798.90.5(f).
- **SOP 205 posting.** Section 205.1 and Civil Code § 1798.90.51(b) require conspicuous public posting. SOP 205 was acknowledged unposted on March 3, 2026 — meaning that for over six years, residents could not see the policy the department claimed to operate under. It has since been published in a combined manual not linked from the License Plate Readers page, in a manner not apparently compliant with SB 34.
- **Council process.** The June 2020 presentation was a non-budgetary informational item that did not request or receive any approval; Council asked for a report-back "after a year of experience," not delivered in the nearly six years since. The first Council vote on the program was the August 2023 master services agreement, placed on the consent calendar, nearly three years after the system had been in operation and after the deployment had nearly doubled — from twelve cameras to twenty-two — without further Council action.

The compliance work that began in late 2025 — the monthly audit memos, the new RTIC operational procedure (Procedure 1102), the December 2025 policy revision restricting sharing to California public agencies, and the new "internal and external" framing in the February and March memos — represents real progress on each of these fronts. None of them is yet complete. Audits now exist, but the implemented audits review sharing

configuration — required by neither policy — rather than the audits required by Policy 463.10 and SOP 205.5.1. The sharing scope has been narrowed by disabling out-of-state lookups, but the entity-type composition of the existing list has not been reviewed. Two months after the city acknowledged the SOP 205 posting as overdue and committed to publish it "as soon as possible," the document has been placed in a combined SOP manual on a section of the city website that is not linked from the License Plate Readers page — not the conspicuous, standalone form required by Section 205.1 and § 1798.90.51(b). There is still no documented approval process for the 283 agencies already on the list. Two unaligned written ALPR policies are in force, neither one implemented as written, and the department's actual practices live outside both. Even taken together, the two policies still don't fully meet state law. The questions below are about completing that work.

Audit scope.

Two parallel audit requirements apply to the program, and the cycle of audits that began in December 2025 satisfies neither as written. Policy 463.10 — titled "ALPR Data Search Audits," added December 2025 — requires monthly audits of ALPR data searches by internal users and quarterly audits of searches by external California public agency users, documented as memoranda to the Chief of Police. SOP 205.5.1, in place since at least October 2019, requires quarterly audits of operator use of Flock and the other ALPR platforms, submitted to the Support Services Captain. The audit memos produced to date are monthly memoranda to the Chief, but they review Flock sharing configuration — out-of-state toggles, network-lookup settings, user counts — content neither policy requires. The February and March 2026 memos added "internal and external" framing to the same monthly format; the content remained sharing configuration. No audit responsive to either policy has been produced.

PRA W012160 returned "no responsive records" for the quarterly operator audits SOP 205.5.1 requires; PRA W012320 has returned "at this time there are no responsive records to your request" for the related SOP 205 search-activity audit records, while noting that "if any responsive records are located, we will further respond." If the required audits were being conducted, the records would be easy to find. When and how does the department intend to perform the data search audits Policy 463.10 requires and the operator audits SOP 205.5.1 requires?

Entity-type review.

University of the Pacific appeared on the department's Flock sharing list as of February 18, 2026, in apparent violation of state law. UOP's own Chief of Police confirmed in writing that UOP "is a private institution and therefore not subject to the CPRA." Civil Code § 1798.90.55(b) restricts sharing to "another public agency" (defined at § 1798.90.5(f)); Policy 463.8 adds that the public agency must be a California state or local agency. The January 2026 audit memo verified that out-of-state sharing was disabled — a geographic check, not an entity-type check. The audit cycle covering the period when UOP was on the list did not surface it. What review is the department undertaking, or planning, to confirm that each of the remaining 282 organizations on the access list qualifies as a public agency under § 1798.90.5(f), and what does the department understand its continuing obligation under § 1798.90.55(b) to require?

SB 34 compliance plan.

Beyond the items above, the department also accesses data from privately-owned community cameras that falls outside the current audit scope, and no published timeline or accountable owner has been identified for closing the remaining gaps. Does the city intend to bring the ALPR program into full compliance with the department's own policies, AG Bulletin 2023-DLE-06, and SB 34, and if so, on what timeline and under whose accountability?

The constructive part.

Linking SOP 205 — and the standalone Policy 463 PDF — from the License Plate Readers page closes a PRA category. Documenting an entity-type review closes another. Conducting the data search audits Policy 463.10 requires and the operator audits SOP 205.5.1 requires closes a third; committing to the quarterly cadence the SOP itself prescribes prevents that gap from re-opening. Five San Mateo County peer cities — Belmont, Foster City, Menlo Park, Pacifica, and South San Francisco — already publish their Flock search audit data through the platform's CSV download. The same option is available for SMPD.

A realistic first step is to commit to a line-by-line review of the department's own policies, AG Bulletin 2023-DLE-06, and Civil Code §§ 1798.90.51–.55 against current practice — with a documented process to ensure each requirement is met and stays met on an ongoing basis. I have compiled a more detailed inventory of these gaps, organized against those same authorities, in a findings document at https://github.com/none-below/sm-alpr/releases/latest/download/SMPD_ALPR_Findings.pdf. You are welcome to use it as a guide.

I will continue to file monthly Public Records Act requests for the documents that city policy and state law require — requests that have largely returned "no responsive records" — until the city's records show those policies are being followed.

The recent compliance work reads as an effort toward alignment with state law and the city's own policies. The gaps above and in my report show the work is not finished. I am not writing to question the value of ALPR — the documented cases where it has helped solve serious crimes are real, and I want San Mateo to be a city tough on crime. Following the law is part of being tough on crime, not in tension with it. The department holds residents to the law; residents should be able to expect a department that holds itself to the laws protecting their privacy and rights. Closing the gaps above is what makes that standard real on both sides.

I would appreciate a written response in the next few weeks, even if interim. I am also available to meet if that would be useful to you or anyone on Council.

Thank you again for the records team's work.

Sincerely,
Brian Cervenka
San Mateo, CA 94402 brian@zerobelow.org

Additional resources:

- SMPD ALPR findings (PDF): https://github.com/none-below/sm-alpr/releases/latest/download/SMPD_ALPR_Findings.pdf
- SMPD transparency report: https://none-below.github.io/sm-alpr/report.html?agency=san-mateo-ca-pd
- San Mateo County sharing map: https://none-below.github.io/sm-alpr/sharing_map.html#san-mateo-ca-pd

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